

Tentative Rulings and Resolution Review Hearings

July 27, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

BELEU, ET AL. VS. GENERAL MOTORS LLC

CASE NUMBER: 25CV-0207896

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiffs Aimee and Matthew Belev filed this Song-Beverly Consumer Warranty Act case on June 9, 2025, alleging that their 2023 Chevrolet Silverado 1500 was defective and that Defendant General Motors, LLC ("GM") failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. The case settled after a group mediation with GM agreeing to repurchase the vehicle, pay \$24,524.70 in reimbursement to Plaintiffs, and pay off the outstanding vehicle loan balance of \$32,152.70. The parties agreed GM would pay Plaintiffs' fees, costs, and expenses pursuant to Civ. Code § 1794(d).

Plaintiffs now seek attorney fees of \$32,977.51 (\$20,200 Zazzi + \$1,900 Fleckenstein + \$4,000 anticipated fees for this attorney fee motion + \$2,610 multiplier enhancement + \$2,940 paralegal + \$1,327.51 costs). GM does not dispute that Plaintiffs are entitled to reasonable fees and costs. However, GM opposes the fee motion, arguing the court should reduce hourly rates from \$500 to \$250 per hour, should reduce the hours billed, and should not

award the \$4,000 anticipated on this fee motion. There is no dispute regarding the costs.

Plaintiff's Counsel filed a Declaration of Kimberli Zazzi in Support of Plaintiffs' Reply to the Defendant's Opposition on July 20, 2026, concurrently with their Reply brief. The Declaration attaches Orders from various Superior Courts around the state (Exhibits 1-5). Plaintiff presents this evidence for the first time along with the Reply, which is improper. Plaintiff also fails to request the Court take judicial notice of these records. This Declaration and Exhibits will not be considered.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM asks the Court to strike or reduce unreasonable and duplicate billing entries. GM identifies these entries by highlighting numerous billing entries at Exhibit A to the Declaration of Heikkinen. This Exhibit generally highlights numerous time entries without specific explanation or argument as to their alleged unreasonableness. GM's Opposition also lists a number of billing entries without explanation or argument as to their alleged unreasonableness. The Court has reviewed the billing records. The Court finds the attorney hours billed to be adequately supported by the billing records and reasonably incurred.

GM also objects to the anticipatory fee request of \$4,000.00 for review of the Defendant's Opposition and preparation of a Reply, and for preparation and attendance at the hearing. The Court agrees that \$4,000 for those tasks is unreasonable. The Court will reduce this amount to \$2,000, which consists of five attorney hours at a rate of \$400 per hour.

GM also objects to the paralegal time, in part on the grounds that it is unclear whether any actual paralegal completed work as no names are included. The Court agrees that Plaintiff has not adequately supported this request. The Court cannot locate any evidence in the record which identifies the billing paralegals by name, or provides any information about their education, qualifications, and experience. Additionally, the Plaintiff's moving papers state that both paralegal and administrative time are included in this request. There is no distinction on the billing records between paralegal time, which is recoverable, and administrative assistant time, which is generally considered overhead. Therefore, the requested paralegal fee of \$2,940.00 will not be awarded.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th

1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval \$500 for both attorneys who billed to this matter. Counsel's declarations provide details on each attorney's education and experience. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a "fee enhancement" or "multiplier." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.'" *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

Here, the Court declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action which settled at mediation early in the case. No discovery or motion practice were undertaken. While the Court acknowledges the attorneys' skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsels' standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff has filed a memorandum of costs. GM does not object to any costs. Total costs are \$1,327.51. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED** in the total amount of \$23,447.51 (consisting of \$18,800 Zazzi + \$1,320 Fleckenstein + \$2,000 anticipated fees for this attorney fee motion + \$1,327.51 costs). A proposed order has been lodged and will be modified.

IN RE: COYLE

CASE NUMBER: 26CV-0210598

Tentative Ruling on Petition for Change of Name: Petitioner Caroline Louise Coyle seeks to change her name to Caroline Louise Martin. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 17, 2026 to Plaintiffs Taryn Ham and Ryan Ham and Counsel Strategic Legal Practices, APC for failure to appear on June 15, 2026 as ordered on February 6, 2026 and failure to provide the Court with an explanation regarding status of discovery as to the Motion for Summary Judgment. Defendant FCA US, LLC's Motion for Summary Judgment was on calendar for hearing on January 26, 2026 and Plaintiffs sought a continuance pursuant to CCP § 437c(h), which was granted. On February 9, 2026, Plaintiffs' counsel was at the hearing when the June 15, 2026 date was selected for hearing on the Motion for Summary Judgment. Plaintiffs did not file an Amended Opposition, did not provide the Court an update regarding discovery, and did not appear at the hearing. Plaintiffs filed a written response to the order to show cause which provides an explanation for the nonappearance. Based on this explanation, the Court discharges the order to show cause re: sanctions and will not impose any monetary sanctions.

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion for Leave to File First Amended Cross Complaint: Cross-Complainant Jeremiah Jese Brooke moves for an order granting leave to file a First Amended Cross Complaint to: 1) include information about the Litigation Guarantee in this action and to reference and/or specifically name lienholders as cross-defendants; 2) add James Collins, deceased, through his Estate or Personal Representative as a cross-defendant; 3) specify unknown cross-defendants as those with interests adverse to Cross-Complainant Jeremiah Jese Brooke.

Neither the original Motion, nor the Declaration of Elizondo Re: Correction and Substitution of Exhibit were timely noticed for today's hearing date. Service by US Mail only adds 5 calendar days to service deadlines. CCP § 1005. The Motion will either be denied or continued to a future hearing date at counsel's request. The Court also notes that Cross-Complainant prematurely filed the Amended Cross-Complaint on July 2, 2026 without leave of Court. The clerk is directed to strike the July 2, 2026 Amended-Cross Complaint.

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

Tentative Ruling on Motion for Leave to File Supplemental Verified Petition for Writ of Mandate: Petitioner, Allen McCloskey, seeks leave to file a Supplemental Verified Petition pursuant to CCP § 473(a)(1) and 464 to add a separate California Public Records Act (CPRA) request submitted on December 23, 2025, and facts pertaining to a fire which occurred on June 12, 2026. Respondents oppose the motion.

CCP § 473(a)(1). "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." CCP § 473(a)(1).

Petitioner does not seek to add or strike the name of a party, correct a mistake in the name of a party, or correct a mistake in any other regard. CCP § 473(a)(1) also allows the court to grant a party leave to amend any pleading in other particulars "absent a showing of prejudice to the adverse party." *Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154. Here, the December and November CPRA requests are two distinctly separate records request. The incorporation of the December CPRA request is prejudicial because the original Petition has already been briefed and it confuses the issues of each separate request.

Additionally, the motion is also procedurally defective. A motion under CCP § 473(a)(1) must comply with the

requirements of CRC 3.1324(b). CRC 3.1324(b) requires the filing of a separate declaration that specifies “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” The supporting declaration fails to address the effect of the amendments, when the facts giving rise to the amendments were discovered, and the reasons the request for amendment was not made earlier. The December 23, 2026, CPRA request was submitted over 6 months ago. No explanation has been provided regarding why leave to add the December CPRA request was not filed sooner.

CCP § 464. “The plaintiff and defendant, respectively, may be allowed, on motion, to make a supplemental complaint or answer, alleging facts material to the case occurring after the former complaint or answer.” CCP § 464. While both the December CPRA request and June 12, 2026, fire occurred after the filing of the original Petition, the motion fails to explain how each event is factually material to the November 2025 CRPA request.

The motion is **DENIED**. Petitioner provided a proposed Order that will be modified to reflect the Court’s ruling.

MEGASTAR FINANCIAL CORP VS. TURNER, ET AL.

CASE NUMBER: 25CV-0207787

Tentative Ruling on Review: This matter is on calendar for review regarding status of default. Default was entered as to Defendant Tessa A. Garrett on August 12, 2025. Default was entered as to Defendant Kyle K. R. Turner on July 8, 2026. Defendant The Secretary of Housing and Urban Development stipulated to a judgment on July 18, 2025. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of default judgment. If a judgment is not on file prior to the next hearing, Plaintiff is ordered to file a status statement no less than five court days prior to the hearing explain the delay. **No appearance is necessary on today’s calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. HIGHFILL

CASE NUMBER: 25CV-0208672

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. Defendant’s request for judicial notice is GRANTED.

Defendant alleges two grounds for the exoneration of the bond. First, they allege that the criminal defendant was referred to probation and by operation of law that the bond was exonerated pursuant to Penal Code § 1195 and *People v. Safety National Insurance Co.* (2007) 150 Cal.App.4th 11. The moving party is incorrect, as the minute order from January 14, 2025 does not show a referral to probation but rather that there was a delayed sentencing. Defendant has failed to establish grounds for exoneration pursuant to Penal Code § 1195.

Next, Defendant argues that Court failed to forfeit the bond in open court. Penal Code § 1305(a) requires the bond to be forfeited in open court. The February 13, 2025 minute order indicates the bond was forfeited. However, the court transcript shows that the judge failed to declare the bond forfeited in open court. Based on the foregoing, the Court finds that exoneration is warranted pursuant to Penal Code § 1305(a) and *People v. Amwest Surety Ins.* (2004) 125 Cal.App.4th 547, 550.

The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

PERRY VS. FARMER

CASE NUMBER: 26CH-0209631

Tentative Ruling on Motion for Attorney’s Fees: Respondent Mark Farmer moves for recovery of attorney’s fees. The motion was originally calendared for hearing on July 6, 2026, but the hearing was continued to today’s date. Petitioner Candilyn Perry was timely served with the motion by mail. On July 22, 2026, Petitioner, now

represented by counsel, filed an opposition to respondent's motion for attorney's fees. This opposition was filed late. Because the Opposition does not change the Court's tentative ruling, the Court will consider the late-filed Opposition.

CCP § 527.6 governs civil restraining orders. Subsection (s) provides that the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any. CCP § 527.6(s). "[A] prevailing defendant can recover attorney fees in an action for injunctive relief against harassment, even if the action was brought in good faith and is not frivolous, if the trial court decides in its discretion to award such fees." *Krug v. Maschmeier* (2009) 172 Cal. App. 4th 796, 798. "The recovery of attorney fees under subdivision (s) of section 527.6 is committed to the trial court's discretion." *Wash v. Banda-Wash* (2025) 108 Cal. App. 5th 561, 568. In determining the amount of attorney's fees to which a litigant is entitled, an experienced trial judge is the best judge of the value of professional services rendered in his or her court. *Granberry v. Islay Investments* (1995) 9 Cal. 4th 738, 752.

Respondent is the prevailing party here, which means the Court has discretion to award fees and costs. The Court recalls the trial in this matter and exercises its discretion to award fees and costs. Counsel for Respondent requests \$7,640. However, the declaration of counsel is insufficient to warrant the amount requested. Timothy M. Prentiss II declared that "I incurred attorney's fees as follows" and goes on to list 5 hours of clerical work billed at \$150 per hour, 18.2 hours of paralegal work billed at \$250 per hour, and 5.5 hours of legal work with 2.7 hours being billed at \$400 per hour and 2.8 hours being billed at \$425 per hour. While it is possible to include paralegal fees in an award of attorney fees, clerical or administrative tasks are not recoverable. *Collins v. City of Los Angeles* (2012) 205 Cal. App. 4th 140. No billing records have been provided to support the paralegal or attorney time. No evidence has been provided to support the hourly rates requested. Therefore, the Court is only able to award attorney's fees based on what the Court can determine from the file.

The trial in this matter was March 19, 2026. The trial started at 1:30 p.m. and court was adjourned at 2:59 p.m. The trial was heard at the same time as an Order to Show Cause Re: Sanctions that issued to Respondent and counsel for failure to file CH-800 as ordered on February 9, 2026. Respondent appeared on one prior occasion to trial which was trial readiness on February 2, 2026. The only other appearances were post trial when Respondent appeared on April 20, 2026 and June 1, 2026 for hearing on prior Motions for Attorney's Fees that were denied without prejudice for being untimely filed. Other than motions seeking attorney's fees, Respondent has only filed the CH-120 and CH-800. Based on the evidence before the Court, the Court finds that \$2,000 is a reasonable sum for attorney's fees in this matter. This is comprised of five hours of attorney time at the rate of \$400 per hour. The Court declines to award any paralegal time as sufficient evidence has not been provided.

The motion is **GRANTED** and fees will be awarded to Respondent in the amount of \$2,000. Respondent did not provide a proposed Order as required by Local Rule of Court 5.17(D). Respondent is ordered to submit a proposed order consistent with the Court's ruling here.

WELLS FARGO BANK, NA VS. BOOTH
CASE NUMBER: 25CVG-00794

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: Plaintiff Wells Fargo Bank. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Donald L. Booth. Despite being timely notice with the motion, Defendant did not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving

papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to meet and confer, Plaintiff sent Defendant a meet and confer letter on June 5, 2026.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney’s fees or other costs associated with bringing the motion. Sanctions should only be imposed for “reasonable” expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions was for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff’s Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The trial date of October 6, 2026 is confirmed.

9:00 a.m. – Review Hearings

ABREU VS. SIMMONS

CASE NUMBER: 25CV-0208617

This matter is on calendar for review regarding status of the case.. The matter is at issue and trial is scheduled for August 4, 2026. Jury fees have not been posted by either party. Therefore, the matter will proceed as a court trial. The Court notes that Plaintiff has not submitted a Request for Remote Appearance for the trial. Given Plaintiff’s status as an incarcerated litigant, on July 23, 2026, the Court issued an Order Regarding Remote Appearance and has ordered that CDCR produce Plaintiff for a remote appearance via WebEx. **An appearance by all parties is necessary on today’s calendar to confirm the trial and provide a time estimate.**

AMYOT VS. SILVERTHORN RESORT, INC.,

CASE NUMBER: 23CV-0203487

This matter is on calendar for a compliance hearing following final approval of a class action settlement. The Declaration of Garvin Brown provides that all payments have been made and that the amount of the uncashed settlement checks will be sent to the California State Controller’s Office on August 5, 2026. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for confirmation. No less than five court days prior to the hearing, Plaintiff shall provide evidence that the transfer to the State Controller’s Office occurred. **No appearance is necessary on today’s calendar.**

BELCHER VS. SHASTA COMMUNITY HEALTH CENTER

CASE NUMBER: 25CV-0208268

This matter is on calendar for a trial setting conference. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than February 17, 2027. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today’s calendar.**

BERG, ET AL. VS. U.S. BANK, ET AL.

CASE NUMBER: 24CV-0206475

This matter is on calendar for review regarding status of settlement or arbitration. Both parties filed status statements. The Court notes that Defendant moved to compel arbitration and that the matter was stayed pending arbitration on June 23, 2025, however, it appears that nothing has been done to actually arbitrate the matter. The

matter is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of arbitration. The parties are ordered to file status statements no less than five court days prior to the review hearing. **No appearance is necessary on today's calendar.**

CRUZ VS. WINCO FOODS, LLC

CASE NUMBER: 24CV-0204817

This matter is on calendar for review regarding Answer to the Cross-Complaint and trial setting. The Court notes that Cross-Defendant Diamond Janitorial Services has not filed an Answer to the Cross-Complaint filed by Winco Foods, LLC on October 13, 2025 and Cross-Defendant Diamond Janitorial Company, LLC has not filed an Answer to the Cross-Complaint filed by TEC Services, LLC on January 26, 2026. A Summons did not issue for either Cross-Complaint. The matter will not be set for trial until the matter is at issue. **An appearance is necessary on today's calendar.**

DISCOVER BANK VS. MARCUZ

CASE NUMBER: 24CVG-01645

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that a CCP § 664.6 Stipulation and Order were returned by the clerk on July 9, 2026 due not containing original signature or being filed by fax. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of CCP § 664.6 Dismissal. Plaintiff is ordered to resubmit. The hearing will be vacated if a dismissal is on file prior to the next court date. **No appearance is necessary on today's calendar.**

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

This matter is on calendar to reset the hearing on Defendant's Motion for Summary Judgment. Defendant filed a status statement requesting a ruling on the motion as submitted. Plaintiffs did not file a status statement. The Court notes that trial in this matter is scheduled for August 25, 2026. Absent good cause being presented otherwise, the Court intends to set the matter for hearing on **Monday, August 17, 2026 at 8:30 a.m. in Department 63** with the Court finding good cause to hear the motion within thirty days of trial. The parties are ordered to meet and confer prior to the hearing regarding trial readiness and the hearing date on the motion. **An appearance is necessary on today's calendar.**

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion to be Relieved: Douglas B. Jacobs of Jacobs, Anderson, Cecil and Wieder, LLP moves to be relieved as counsel for Plaintiff James Jackson. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d).

There is proof of service on file reflecting timely service on Plaintiff as well as Defendant's counsel. The address used for service on Plaintiff was confirmed within the last 30 days mail with return receipt.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff's counsel has provided evidence that there is a breakdown in the attorney-client relationship such that continued representation is untenable.

The motion is **GRANTED**. Counsel provided a proposed Order that will be executed by the Court. Jacobs, Anderson, Cecil and Wieder, LLP will be relieved upon the filing of the Notice of Entry of Order. The matter

will be on calendar on **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of counsel. Plaintiff's counsel is ordered to provide notice of the hearing date to all parties.

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

This matter is on calendar for review regarding status of counsel and status of service. The Court intends to relieve Plaintiff's counsel pursuant to a noticed motion on today's calendar. Therefore, today's hearing is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for review regarding status of counsel and status of service.

JONES, ET AL. VS. VERCAMMEN

CASE NUMBER: 25CV-0208460

This matter is on calendar for review regarding status of service and responsive pleading. Defendant filed an Automatic Extension on May 13, 2026. No responsive pleading has been filed. Proof of Service of Summons has not been filed. At the last hearing on June 15, 2026, Plaintiff was ordered to file a status statement no less than five court days prior to today's hearing. A status statement has not been filed. **An appearance is necessary on today's calendar.**

RICO VS. FORD MOTOR COMPANY, ET AL.

CASE NUMBER: 24CV-0205309

This matter is on calendar for review regarding status of judgment/Dismissal. Notice of Conditional Settlement was filed on January 28, 2026 indicating the matter would be dismissed no later than May 27, 2026. The matter has not been dismissed, however, Plaintiff filed a status statement explaining the delay and seeking a continuance of today's hearing. The matter is continued to **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on October 26, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the October 26, 2026 hearing. The Court notes that Plaintiff has expressed **No appearance is necessary on today's calendar.**

STILIHA, ET AL. VS. FORD MOTOR COMPANY, ET AL.

CASE NUMBER: 24CV-0204729

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 26, 2025 informing the Court that the matter would be dismissed no later than April 27, 2026. At the review hearing on June 19, 2026, the Court noted that the matter would be dismissed today absent good cause being presented. The matter has not been dismissed, however, Plaintiff filed a status statement explaining the delay and seeking a continuance of today's hearing. The matter is continued to **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on October 26, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the October 26, 2026 hearing. Regarding the Motion for Attorney's Fees filed on April 8, 2026, the Notice of Motion was presented for filing with the date, time and department written in, which is why the matter was calendared for hearing on May 11, 2026. The motion was denied without prejudice on May 11, 2026 because there was no proof of service on file and the motion was not signed by counsel. Should Plaintiff choose to file again, Plaintiff shall file and serve the motion per CCP § 1005(b) and comply with CCP § 128.7(a). **No appearance is necessary on today's calendar.**

TERRANA VS. PECK, ET AL.

CASE NUMBER: 24CV-0205039

This matter is on calendar for review regarding status of case and trial setting. At a previous appearance on March 16, 2026, the Court was informed that Defendant Jeanette Peck died. At the review hearing on May 18, 2026, the Court ordered the parties to file status statements at least five court days prior to today's hearing. No status statements have been filed. **An appearance is necessary on today's calendar.**

THE MCCONNELL FOUNDATION VS. GHEEN BUILDERS, INC., ET AL.

CASE NUMBER: 25CV-0208455

This matter is on calendar for a trial setting conference. The matter is not at issue. There is no Proof of Service of Summons on file for Cross-Defendants Joseph Craig Nixt or Harbor Roofing, Inc. The Cross-Complaint was filed on May 6, 2026 and all Cross-Defendants should have been served within 30 days. CRC 3.110(c). The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of service and responsive pleading and, if appropriate, trial setting. If the matter is not at issue prior to the next review hearing, Plaintiff is required to file a status statement no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$464,079.92 UNITED STATES CURRENCY

CASE NUMBER: 25CV-0208558

This asset forfeiture matter is on calendar for review regarding status of criminal proceeding. On May 18, 2026, the Court ordered that the parties file a status statement at least five court days prior to today's hearing. No status statements have been filed. **An appearance is necessary on today's calendar.**

UMPQUA BANK VS. SABET, ET AL.

CASE NUMBER: 24CV-0205194

This matter is on calendar for review regarding status of the case. The Court notes that the Second, Fourth, Fifth, and Sixth Causes of Action and Defendant Delight Foods were dismissed on July 13, 2026. The Court further notes that summary adjudication as to the First and Third Causes Action were granted against Defendants Farzad Sabet, an individual, Marikit Del Rosario-Sabet, an individual, and Farzad Sabet and Marikit Del Rosario-Sabet, Trustees of the Sabet 2012 Trust (Sabet Defendants). Plaintiff has not sought a judgment. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of the case. If Plaintiff has not obtained a judgment prior to the next review hearing, the parties are ordered to file status statements no less than five court days prior to the next review hearing. **No appearance is necessary on today's calendar.**

ZANIN VS. CROSBIE, ET AL.

CASE NUMBER: 25CV-0208552

This matter is on calendar for trial setting. The matter is now at issue as Cross-Defendant Kristian Kent was defaulted on June 29, 2026. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than February 23, 2027. Plaintiff and Defendant Matthew Crosbie has have posted jury fees. The remaining parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**